
WORK SAFETY MANAGEMENT AGREEMENT

安全生产管理协议

Your provision of the goods or services to PCN / Client will be deemed as your acceptance of the terms hereof and your agreement to be bound by this Appendix [20] Work Safety Management Agreement (this "Appendix"). This Appendix shall be binding upon you and become effective as of this Warehousing Agreement ("Effective Date").

贵方向保时捷中国/客户提供商品或服务即被视为贵方对本安全生产管理协议（“本附件”）的接受以及对受本附件约束的同意。本附件对贵方有约束力，并自本仓储协议生效之日起（“生效日期”）生效。

"PCN" / "Client" and "Vendor" are hereinafter referred to collectively as the "**Parties**" and each individually as a "**Party**".

“保时捷中国”/“客户”和“提供商”，以下合称“双方”，分别称为“一方”。

This Appendix is intended by the Parties to set out the work safety management responsibilities of both Parties for each and every Project that Client may engage Vendor to perform after the Effective Date. This Appendix is formulated in accordance with the relevant laws and regulations of the State such as the "Work Safety Law of the People's Republic of China" and the "Fire Protection Law of the People's Republic of China" etc. Unless otherwise provided by the Parties in writing, this Appendix shall apply to the Warehousing Agreement between the Parties and be construed together with such Warehousing Agreement.

双方旨在通过本附件规定适用于双方之间在生效日期后客户可能聘用提供商履行的每一个项目中双方的安全生产管理职责。本附件依据《中华人民共和国安全生产法》和《中华人民共和国消防法》等国家有关法律法规制定。除非双方另有书面约定，本附件应适用于双方订立的仓储服务合同，并与其一并解释。

The "**Project**", for the purpose of this Appendix, includes but is not limited to: (1) the Vendor provides the services to the Client in the Client's workplace or in its own workplace (including the leased workplace of the Vendor); (2) the Vendor contracts the Client's construction projects; (3) the Vendor enters the Client's workplace to carry out delivery, installation, commissioning, maintenance and other work. For the purpose of this Appendix, the "**Vendor**" excludes visitors to the Client's workplace other than for the purpose of performing relevant contracts.

为本附件之目的，“项目”包括但不限于：（1）提供商在客户场所或利用自有场所（包括提供商租赁场所）向客户提供服务；（2）提供商承包客户的施工工程；（3）提供商到客户场所开展送货、安装、调试、检修等工作。为本附件之目的，“提供商”不包括非为履行相关合同之目的到客户场所的访客、参观人员。

Whereas,

鉴于：

The Vendor has fully understood the nature of the Project to be performed and the specific work requirements, and as a professional agency that performs the Project, the Vendor hereby undertakes as follows:

提供商已充分了解了需履行的项目性质以及具体的工作要求，因此作为履行项目之专业机构，提供商特做出如下承诺：

1. The Vendor and all its personnel, equipment, and workplaces that provide professional services for the Client have the professional qualifications and work safety conditions required by the State and the government in the place where the services are rendered to complete the Project. The Vendor shall be responsible for the authenticity and validity of all documents certifying qualifications and work safety conditions that are provided to the Client for filing purpose. **All legal consequences caused by providing false or forged qualification certificates shall be borne by the Vendor.** 提供商公司及其所有为客户提供

专业服务之人员、设备、场所等均拥有国家及服务所在地政府要求的完成项目所需之专业资质及安全生产条件。提供商并承诺对所有提供给客户备案的用于证明资质及安全生产条件文件的真实性及有效性负责。**因提供虚假或伪造的相关资质证书所造成的一切法律后果均由提供商承担。**

2. The Vendor has identified all risks in the Project under which the Vendor provides services to the Client, including but not limited to the risks associated with the daily, abnormal, and urgent work status, and the impact caused by external workers hired by the Vendor in its own workplace (including the leased workplace of the Vendor) on the safety of the Client's materials or items, and has taken engineering control, safety management, individual protection, emergency response, and other control measures for the Project that are sufficient to respond to all the aforesaid risks in accordance with laws, regulations, and national and local compulsory standards, and the Vendor shall be responsible for the safety and effectiveness of the foregoing risk control measures.

就为客户提供服务之项目, 提供商已针对所有包括但不限于日常、异常、紧急等工作状态以及提供商自有场所(包括提供商租赁的场所)邀请外来作业人员作业而对客户物料或物品安全产生影响等所有状况的风险进行了辨识并按照法律、法规、国家及地方强制性标准的要求就需履行的项目设置了足以应对前述所有风险的工程控制、安全管理、个体防护、应急处置等控制措施, 并对前述所有风险控制措施的安全性及有效性负责。

3. In response to the risks identified above, the Vendor has established relevant rules and regulations regarding work safety and occupational health management, overall work safety responsibility system, and operating procedures in accordance with laws, regulations, and national and local compulsory standards, and has provided three-level training and regular training for all workers who provide services for the Client in accordance with relevant national requirements on work safety and occupational health training. All workers have passed the training and assessment performed by the Vendor.

基于前述风险辨识, 提供商也已按照法律、法规、国家及地方强制性标准的要求建立了安全生产及职业健康管理相关的规章制度、全员安全生产责任制及操作规程, 并已按照国家有关安全生产及职业健康的培训要求对所有为客户提供服务的作业人员进行了三级教育培训及定期教育培训, 所有作业人员均已通过了提供商进行的培训及考核。

Apart from the aforesaid training and assessment, the Vendor and all personnel legally hired by it to provide services for the Client have understood all terms of this Appendix regarding work safety and occupational health, and passed the relevant training and assessment.

除前述培训及考核外, 提供商及其合法邀请的所有为客户提供服务的人员均已了解本附件中有关安全生产及职业健康要求的所有条款, 并通过了相应的培训及考核。

4. The Vendor has purchased medical, work-related injury, and other social insurance for all workers in accordance with relevant national regulations, and purchased the appropriate personal accident insurance for those engaged in highly dangerous work as needed. In the event of any personal injury or death accident to the Vendor's workers or any other violation committed by the Vendor's workers during the service process, the Vendor shall be responsible for handling such accident or violation and bear the full liability arising therefrom (including but not limited to the liability for civil compensation and administrative penalty), which shall be irrelevant to the Client.

提供商已按照国家相关规定为所有作业人员办理医疗及工伤等各项社会保险, 并根据需要为从事高度危险工作的人员购买适当的人身意外伤害保险。如在服务过程中提供商作业人员发生人身伤亡事故或发生其他任何违法情况, 由提供商自行处理并承担因此造成全部责任(包括但不限于民事赔偿, 行政处罚责任), 与客户无任何关系。

1. The Client's Rights, Obligations and Responsibilities

客户的权利、义务和责任

- 1) The Client appoints (name: _____, contact information: _____) as its safety contact to be responsible for contacting the Vendor and assisting and supervising the Vendor to implement the safety-related regulations. If the Vendor has any suggestions on the Client's materials or the safety condition thereof or identifies any safety conditions that may impact the safety of the Client's products, materials, or the area where the products or materials are located (such as the on-site construction or on-site hot work performed by the hired construction entity), the Vendor shall immediately inform the Client's contact, and may proceed with the operation after effectively implementing a safety control plan that has been approved by the Client's contact.

指派(姓名: _____ 联系方式: _____)作为客户方安全联系人, 负责联系并协助督促提供商执行有关安全的相关规定。如提供商针对客户物料或安全状况有任何建议, 或发

现有任何与可能影响客户商品、物料或其所在区域的安全状况的（如邀请施工单位对现场施工，现场进行动火作业等），提供商应立即告知客户联系人且在管控方案取得客户联系人同意后，并切实落实前述管控方案的情况下，方得进行。

In case of an emergency, the Vendor shall notify the Client's contact after taking emergency measures to control the on-site risks.

遇有紧急情况，提供商应在先采取紧急措施控制现场风险后，再行通知客户联系人

- 2) The Client shall organize inspection of the Vendor's on-site production safety status for the provided Project at least once every three months and require the Vendor to eliminate the latent dangers of work safety accidents in a timely manner and ensure the on-site safety during the elimination of latent dangers. The Vendor shall actively assist the Client's personnel in carrying out work safety inspection.

客户每三月至少一次组织对提供商的就提供项目安全现场生产状况进行检查，发现问题后提供商应负责消除生产安全事故隐患并确保隐患整改期间的现场安全状况。提供商应积极协助客户人员开展安全生产检查工作。

- 3) Given that the Vendor is responsible for the whole process management of the Project, the Vendor shall bear the principal responsibility for safety management of the Project, and the Client is only responsible for safety supervision and coordination. If the Client performs a work safety inspection, the Vendor shall comprehensively present the on-site situation and shall not hide anything about the on-site safety condition. Otherwise, the Client may immediately terminate the contracts with the Vendor at any time after the Vendor is found to do so. The Client's failure to point out any unsafe operations performed by the Vendor's workers due to lack of relevant professional knowledge or the occurrence of unsafe operations performed by the Vendor's workers in the absence of the Client's on-site supervision shall not be deemed as the Client's permission of the aforesaid unsafe operations, and the Vendor's on-site management personnel shall still ensure to effectively restrain unsafe operations of the Vendor's workers at all times.

因提供商对项目具有全过程管理职责，故提供商承担项目安全管理主体责任，客户仅承担安全监督协调职责。故如遇客户检查时，提供商应全面展示现场的情况，不能对现场安全状况有任何隐瞒，否则一旦客户发现，任何时候客户均可以立即解除与提供商之合同。如因客户专业水平不足未能指出提供商作业人员的不安全作业行为，或不在现场监督时提供商作业人员出现不安全作业，不视为客户允许前述不安全行为，提供商现场管理人员仍应确保始终有效制止提供商作业人员的不安全行为。

- 4) The Client has the right to supervise and inspect the work safety status of the Vendor, including workplace, system and personnel.

客户有权对提供商的场所、制度、人员等安全生产情况进行监督检查。

- 5) The Client has the right to take corresponding countermeasures and seek corresponding remedies (including requiring the Vendor's personnel in violation to leave the Client's workplace and not to continue to participate in the Project, terminating the contract in accordance with relevant contract provisions, etc.) in accordance with the Client's relevant management regulations where the Vendor or the Vendor's personnel violates the relevant laws and regulations on work safety or the Client's relevant management regulations (including but not limited to the "Porsche Code of Conduct for Business Partners" and the "PCN Third-Party Code of Conduct"); if the Client's Project is delayed due to, or other losses are caused by, such violation, the Vendor shall bear the corresponding compensation or liability for breach of contract.

提供商或提供商人员违反安全生产相关法律法规或客户相关管理规定（包括但不限于《保时捷业务伙伴行为准则》、《保时捷中国第三方行为准则》）的，客户有权根据客户相关管理规定采取相应的应对措施并寻求相应的救济（包括要求存在违规情形的提供商人员离开客户现场、不得继续参与项目，根据相关合同约定终止合同等）；如因此导致客户项目延期或其他损失的，提供商应承担相应赔偿或违约责任。

- 6) If the Client has other safety requirements other than those specified in this Appendix, it may communicate with the Vendor in a timely manner, and the Vendor shall also comply with such safety requirements.

客户如有本附件规定之外的其他安全要求，可以与提供商及时沟通，提供商亦应遵守该等安全要求。

- 7) The Client shall comply with the relevant provisions of the *Work Safety Law of the People's*

Republic of China, Fire Protection Law of the People's Republic of China and other laws, regulations or relevant provisions of local governments or competent authorities.

客户应遵守《中华人民共和国安全生产法》、《中华人民共和国消防法》以及其他法律、法规、地方政府或主管机关的有关规定。

2. The Vendor's Rights, Obligations and Responsibilities

提供商的权利、义务和责任

- 1) The Vendor shall bear the principal responsibility for safety management of the provided Project. The Vendor shall appoint the full-time work safety management personnel (name: _____, contact information: _____) in accordance with the relevant laws and regulations to conduct safety inspection and coordination for the Project.

提供商承担提供项目安全管理主体责任。提供商应当按照相关法律法规的规定指定专职安全生产管理人员（姓名：_____ 联系方式：_____），对项目进行安全检查与协调。

During the service period, the work safety management personnel shall be responsible for the overall work safety and fire safety management of the Project and shall inspect and supervise in person, or appoint any other person to inspect and supervise, the strict compliance with and implementation of operation schemes, safe operating procedures, and various safety rules and regulations by the workers during work, to ensure that all work related to the Project is safely implemented under supervision.

服务期间，前述人员负责本服务项目整体的安全生产及消防安全管理工作。前述人员在作业人员作业时必须亲自或指派人员在岗检查、督促作业人员严格遵守、认真执行作业方案，安全作业规程及各项安全制度，确保项目期间的各项工作均在监控下予以安全实施和落实。

- 2) If any of the Vendor's workers identifies that the behavior or status of the Client or any other vendor of the Client does not conform to the work safety requirements, the Vendor shall immediately stop it, take effective risk control measures, and promptly report it to the Client's contact who will handle such nonconformity.

如提供商任何工作人员发现客户或者客户其他提供商的行为或状况不符合安全生产要求的，应立即制止及采取有效措施管控风险，并及时向客户联系人进行汇报，由客户联系人进行处置。

- 3) If the Client informs the Vendor of any illegal operation or violation of safe operating procedures by the Vendor's workers, the Vendor's full-time work safety management personnel shall also immediately verify it and take effective measures (including but not limited to immediate cessation of operation, providing retraining and other methods) against the workers, to avoid the recurrence of such illegal operation or violation.

如遇客户向其告知提供商作业人员有违章作业、违反安全规程等情况的，提供商的专职安全生产管理人员也应立即查实并采取有效措施（包括但不限于立即停止作业，进行再培训等方式）对前述作业人员进行处理，防止前述情况再次发生。

The Parties acknowledge that if the Vendor's workers who have performed illegal operations refuse to sign a notice on correction of potential safety hazards, the notice shall be deemed to have served after the Client notifies the Vendor's work safety management personnel set forth herein by SMS or WeChat. The Vendor shall immediately take effective measures to require its workers to cease the illegal operations. Otherwise, the Client has the right to immediately terminate this Appendix and all other agreements between the Parties, and hold the Vendor liable for breach of contract.

双方确认，如提供商违章作业人员不愿在安全隐患整改通知单上签字的，则由客户向本合同载明的提供商安全生产管理人员短信或微信通知后，即视为前述整改通知单送达。提供商应立即采取有效措施要求提供商作业人员停止违章作业，否则客户有权立即解除本附件及双方所有的协议，并要求提供商承担违约责任。

- 4) The Vendor shall formulate and implement the overall work safety responsibility system, work safety rules and regulations and operating procedures in accordance with relevant laws and regulations. If laws, regulations, and national and local compulsory standards update the safety requirements for the service items, the Vendor shall be responsible for immediately updating the aforesaid overall work safety responsibility system, work safety rules and regulations and

operating procedures, and providing training for all workers, to ensure that the workers implement the aforesaid requirements at work.

提供商应当按照相关法律法规规定建立健全和落实全员安全生产责任制和安全生产规章制度和操作规程。如法律、法规及国家、地方强制性标准对服务项目的安全要求进行更新时, 提供商应负责立即更新前述各项安全生产责任制和安全生产规章制度和操作规程并对所有作业人员做好教育培训工作, 以确保其在工作中得以落实前述各项要求。

- 5) The Vendor shall establish a work safety inspection frequency and inspection point form in accordance with national laws, regulations, and compulsory standards, as well as the on-site safety condition, and organize regular work safety inspections, including but not limited to daily, weekly, monthly, and quarterly inspections, and irregular inspections, including but not limited to the safety inspection of a single service, inspection before extreme weather, and inspection before holidays, to promptly eliminate potential safety hazards and correct illegal operations.

提供商须按照国家法律、法规、强制性标准要求及现场安全状况建立安全生产检查频次及检查点位表, 并组织开展安全生产定期检查, 包括但不限于日查、周查、月查、季查以及不定期检查, 包括但不限于针对单次服务的安全检查, 极端气候来临前检查, 节前检查等, 及时消除安全隐患, 纠正违章行为。

If the potential safety hazards cannot be immediately corrected, the Vendor shall take effective measures to control temporary risks and develop a written corrective action plan specifying the responsible persons, corrective actions, time limit, funds needed, and an emergency rescue plan. The Vendor shall effectively implement the plan after it is approved by the Client.

如安全隐患不能立即整改完成, 提供商应采取有效措施管控临时风险, 并制定书面整改方案, 整改方案要求定人、定措施、定时间、定资金、定应急救援预案。在前述方案取得客户同意后, 再行切实执行。

- 6) The Vendor shall conduct work safety training for the Vendor's employees. The Vendor's employees can only take up their posts after passing the assessment. In case of any new employees, or any employees who resume their posts after leaving their posts for a period of time or who are transferred to another jobs, or any new process, new technology, new material, or new equipment used at the site by the Vendor in its sole dissection or by the Client, the Vendor shall provide training for the relevant employees, and only after passing the assessment, the relevant employees can take up their posts.

提供商应当对提供商从业人员进行安全生产教育和培训, 提供商从业人员考核合格后方可上岗。如遇新上岗, 离岗一定时间后重新上岗或者换岗后, 以及提供商自行或客户采用现场新工艺、新技术、新材料、使用新设备等情况, 提供商应及时对相关从业人员做好教育培训并通过考核后, 方可上岗。

- 7) The Vendor shall organize occupational health examinations for Vendor's personnel engaged in the operation exposed to occupational hazard factors in the Client's workplace in accordance with relevant laws and regulations, and shall not arrange the personnel with occupational contraindications to engage in operations they are contraindicated for in the Client's workplace and shall take other necessary control measures.

对提供商在客户场所从事接触职业病危害的作业的人员, 提供商应按照相关法律法规的规定组织职业健康检查, 不得安排有职业禁忌的人员在客户场所从事其所禁忌的作业, 并采取其他必要的控制措施。

- 8) Any personnel of the Vendor who enters the Client's workplace (including but not limited to engaging in delivery and carrying out operational activities) shall comply with the Client's various work safety management regulations and safety requirements, operate or carry out the Project activities only in the area specified or authorized by the Client, and cooperate with the implementation of various safety management operating procedures, emergency response procedures, etc.

提供商的任何人员进入客户场所(包括但不限于送货、开展作业活动)的, 应遵守客户的各项安全生产管理规定和安全要求, 仅在客户规定或授权的区域内作业或开展项目活动, 配合落实各项安全管理作业规程、应急响应程序等。

- 9) If the Vendor uses its own workplace (including the leased workplace of the Vendor) to provide services for the Client, in cases where events such as but not limited to renovation, reconstruction, hazardous operations, etc., occur at the Vendor's own workplace that may have an impact on the safety of the Client's materials or the area where the materials are located, the Vendor shall notify the Client in advance and start operation after obtaining the consent of the

Client. The Vendor shall strictly review the construction entity's qualifications, and shall not enter into a construction contract with any entity who does not have the relevant construction qualifications or whose construction qualifications are inconsistent with the contract work. The Vendor shall start construction after obtaining a construction filing permit if it is required by the governmental administrative authority. In addition, the Vendor shall take effective measures throughout the whole construction process to ensure the safety of the Client's materials or the area where the materials are located.

如提供商利用自有场所（包括提供商租赁场所）为客户提供服务的，如前述自有场所发生包括但不限于改造、改建、危险作业等可能对客户物料或物料所在场所产生安全影响的情况，提供商应提前告知客户并在取得同意后方得作业。提供商应严格审查施工方各项资质，不得与不具备施工资质或施工资质与承包内容不相符的单位签订施工承包合同。政府行政主管部门要求取得施工备案的，提供商应取得施工备案许可证后方可施工。提供商并应在整个施工过程中采取有效措施确保客户物料或物料所在区域安全。

- 10) When driving in the Client's workplace, the Vendor must strictly abide by the Client's traffic regulations, drive according to the designated route, stop at the designated place, and load and unload goods at the designated place.

提供商在客户的场所内行驶车辆时，必须严格遵守客户的交通规定，按指定路线行驶，在指定地点停车、装卸货物。

- 11) The Vendor shall identify the potential safety risks in the operation process in advance, formulate corresponding safety control measures for the identified safety risks, and provide workers with labor protection articles and necessary safety and emergency equipment and facilities that comply with national standards or industry standards. the workers and the workplace cannot meet the safety requirements for provision of services before the operation, the Vendor shall not carry out the operation. The Vendor shall take effective measures to ensure that the workers wear complete, qualified and effective safety protection equipment and labor protection articles in the whole operation process and the on-site safety measures are effective.

提供商应事先辨识作业过程中潜在的安全风险，针对辨识出的安全风险制定相应的安全管理措施，并为作业人员提供符合国家标准或者行业标准的劳动防护用品以及必要的安全与应急设备设施。如作业人员及作业现场在作业前不能满足提供服务所需的安全要求时，提供商不得开展作业。提供商应采取有效措施确保作业人员作业时将全程佩戴齐全合格有效的安全防护用具、劳动防护用品以及现场安全措施有效运行。

The Vendor shall formulate special operation plans before engaging in dangerous operations such as work at heights and temporary electricity operations and submit them to the Client for filing purpose. If, in the judgment of the Vendor, the aforesaid operations may affect the safety of the Client's materials or the area where the materials are located, the Vendor shall start the operations after obtaining the consent of the Client and shall implement the safety management requirements of relevant laws, regulations, and compulsory standards regarding the aforesaid dangerous operations.

提供商在从事高处作业、临时用电作业等危险作业前应事先制定专项作业方案，并报送客户存档。如经提供商判断前述作业影响到客户物料或所在区域现场安全状况，应得到客户同意后方得进行，并执行法律、法规及强制性标准对于前述危险作业的安全管理要求。

- 12) The Vendor shall equip workers with tools and facilities that comply with relevant laws and regulations. The Vendor shall arrange special personnel to be responsible for repairing, maintaining, and safekeeping the Vendor's equipment, tools and facilities and other items. The Vendor shall be responsible for the safety and effectiveness of such equipment, tools and facilities and other items through safety inspections and other means. Without the Client's prior permission, the Vendor's personnel shall not use or operate any of the Client's equipment, tools and facilities.

提供商应为作业人员配备符合相关法律法规规定的工具、器材具。提供商的设备、工具、器材等物品应安排专人负责保养、维护、保管，并由提供商通过安全巡检等方式对其安全及有效性负责。未经客户事先许可，提供商人员不得使用或操作客户的任何设备、设施、工具或器材。

- 13) The Vendor must carefully inspect the working area, facilities and equipment, tools, and labor protection articles, etc. The safety issues found in the inspection must be rectified and

implemented immediately, and the operation can only be continuing after the rectification is completed. Once a latent danger of work safety accidents is found, or when there encounters an issue or there is a situation that is unclear, the Vendor must notify the Client immediately and stop the operation in accordance with the requirements of relevant laws and regulations and take other necessary measures until the latent dangers or concerns are eliminated. During the rectification period, the Vendor shall take effective measures to ensure the on-site safety. **If the Client's Project is delayed or other losses are caused thereby and the Client is not at fault, the Vendor shall bear the corresponding compensation or liability for breach of contract. Once the Vendor starts the operation, it means that the Vendor has confirmed that its working area, facilities and equipment, tools, and labor protection articles, etc. meet the safety requirements and are in a safe state.**

提供商对作业区域、设施设备、工器具、劳动防护用品等必须认真检查。对检查发现的安全问题,须立即整改落实,整改完成后方可继续作业。一旦发现生产安全事故隐患,或遇有问题或情况不明时,须立即通知客户,按照相关法律法规的要求停止作业并采取其他必要措施,直至隐患或顾虑消除,整改期间提供商应采取有效措施确保现场安全状况。如因此导致客户项目延期或其他损失且客户无过错的,提供商应承担相应赔偿或违约责任。提供商一旦开始作业,即表示提供商已确认其作业区域、设施设备、工器具、劳动防护用品等符合安全要求和处于安全状态。

- 14) The Vendor shall take the initiative to learn about the Client's workplace safety risks, safety precautions and Client's safety management requirements, and identify the safety risks of the Client's workplace, and be familiar with the safety and fire emergency facilities and layout conditions before entering the workplace to operate, so to escape or take other countermeasures at the first time. **Once the Vendor starts the operation, it means that the Vendor has fully understood the above situation.**

提供商进入客户现场作业前须主动向客户了解客户现场的安全风险情况、安全注意事项和客户的安全管理要求,辨识客户现场的安全风险,熟悉安全消防应急设施及布置状况,以便第一时间逃生或采取其他应对措施。提供商一旦开始作业,即表示对上述状况均已充分了解。

- 15) The Vendor shall compile emergency plans for work safety accidents which shall be reviewed and filed, and shall organize emergency drills for all employees in accordance with the requirements of laws, regulations, and compulsory standards. Once any accidents and emergencies occur, it shall immediately start the plan, report and deal with it in a timely manner in accordance with relevant regulations.

提供商应编制生产安全事故应急预案并通过评审及备案,且按照法律、法规、强制性标准要求组织所有从业人员做好应急演练。一旦发生各类事故和紧急情况,应立即启动预案,并按照有关规定及时上报和处理。

- 16) In case of any work safety accident during the operation, the Vendor shall promptly notify the Client, take effective measures immediately, organize rescue, prevent the accident from worsening, reduce casualties and property losses, and protect the scene, and, upon fully communication with the Client, immediately and truthfully report to the local authorities responsible for the supervision and administration of work safety in accordance with the relevant provisions of the State. The Vendor shall also cooperate with and assist the Client in carrying out the relevant incident response actions. **If the above-mentioned work safety accident is caused for reasons not attributable to the Client, the relevant economic compensation, aftercare costs and other legal liabilities (including the liability for compensation stipulated in other provisions of the contract) shall be borne by the Vendor or the responsible party, which shall be irrelevant to the Client. The Client shall not be liable for any death of the Vendor's personnel due to sudden illness, or for any traffic or other accidents suffered by the Vendor's personnel on their way to and from work.**

在作业期间发生任何生产安全事故,提供商应当立即通知客户,迅速采取有效措施,组织抢救,防止事故扩大,减少人员伤亡和财产损失,保护现场,并在与客户充分沟通后,按照国家有关规定立即如实报告当地负有安全生产监督管理职责的部门。提供商还应当配合并协助客户开展相关事故应对行动。因非客户原因造成上述生产安全事故的,相关的经济赔偿、善后处理费用及其他法律责任(包括合同其他部分规定的赔偿等责任)均由提供商或责任方承担,与客户无关。对于提供商人员突发疾病死亡或上下班途中发生交通等事故的,客户不承担任何责任。

- 17) The Vendor shall comply with the relevant provisions of the *Work Safety Law of the People's Republic of China*, the *Fire Protection Law of the People's Republic of China* and other laws, regulations or relevant provisions of local governments or competent authorities, and shall accept the guidance, supervision and inspection of the relevant competent authorities of the State and local governments, and timely eliminate the latent dangers of work safety accidents.
- 提供商应遵守《中华人民共和国安全生产法》、《中华人民共和国消防法》以及其他法律、法规、地方政府或主管机关的有关规定，自觉接受国家、地方政府有关主管部门的指导、监督、检查，及时消除生产安全事故隐患。

3. If this Project involves the following contents, the Vendor shall fulfill the following obligations:

本项目如涉及以下内容，提供商应遵照执行：

1) Activities:

活动类：

- Activities include: [e.g., carnival, anniversary celebration], but are not limited to the above types.
活动类项目包括：【例如：嘉年华、周年庆】，但不仅限于以上项目类型。
- The Vendor shall take the initiative to identify the type of the activities of the Vendor, be responsible for providing approval materials submitted to public security, fire protection and other government units in accordance with the provisions of laws and regulations of the State, and perform all application procedures for examination and approval.
提供商应主动辨识提供商活动项目类型，按照国家法律法规规定，负责提供报送给公安、消防等政府单位的审批材料，履行各项报审、报批手续。
- The Vendor shall, in accordance with the regulations and standards of the State, set up exit(s) that meet(s) the requirements for emergency evacuation, the mark of which shall be obvious, and keep such exit(s) unobstructed.
提供商应按照国家法规和标准，设有符合紧急疏散要求、标志明显、保持畅通的出口。
- The Vendor is responsible for ensuring the safety of temporary facilities and buildings, and eliminating potential safety hazards in a timely manner.
提供商负责保障临时搭建的设施、建筑物的安全，及时消除安全隐患。
- If the Vendor provides facility construction or other construction services, it shall meet the relevant requirements of construction operations under this Agreement.
若提供商提供设施搭建或其他建筑施工服务，应满足本协议项下有关施工作业的相关要求。

2) Service:

服务类：

- Service items include: [e.g., equipment maintenance, warehouse, and transport], but are not limited to above types.
服务类项目包括：【例如：设备维修、仓储、运输】，但不仅限于以上项目类型。
- The Vendor shall set temporary fences and warning signs in the construction area, and shall not exceed the formulated scope of construction, and forbid irrelevant personnel entering the construction site.
提供商应在施工区域设置临时围栏和警示标识，不得超越制定的施工范围进行施工，禁止无关人员进入施工现场。
- If the service items provided by the Vendor involve the management of the Client's hazardous chemicals, hazardous goods, or other hazardous materials, the Vendor shall obtain all Material Safety Data Sheets for the aforesaid materials from the Client before providing the services. If the Client's materials are found inconsistent with the Material Safety Data Sheet, the Vendor shall suspend the operation and immediately notify the Client.
- 如提供商提供的服务项目涉及客户危险化学品、危险货物等具有危险性的物料管理时，提供商应在项目服务前取得客户前述物料所有的化学品技术说明书。当发现客户物料与现有化学品技术说明书不符时，应暂停作业并立即通知客户。

- If the Vendor uses its own warehouse to provide storage services for the Client's hazardous chemicals or hazardous goods, the Vendor shall manage the Client's materials in accordance with national compulsory standards, including but not limited to GB 15603, GB 17914, GB 17915, GB 17916, etc. in addition to relevant laws and regulations, and shall perform the safety inspection at least once a day.
- 如提供商为利用自有仓库为客户危险化学品或危险货物提供仓储服务的, 除法律、法规外, 提供商还需按照包括但不限于 GB15603,GB17914,GB17915,GB17916 等强制性国家标准对客户物料进行管理, 并至少每天进行一次安全检查。
- If the Vendor provides transportation services for the Client's hazardous chemicals or hazardous goods, the Vendor shall perform the whole process safety management and inspection of the Client's materials, including but not limited to packaging, labeling, loading and unloading, preparation of documents, and transportation, in accordance with relevant laws, regulations, and standards.
- 如提供商为客户危险化学品或危险货物提供运输服务的, 提供商需按照法律、法规、标准要求对客户物料包括但不限于包装、贴标、装卸、制单、运输等过程进行全过程安全管理及检查。

3) Rental Projects

租赁项目:

- Rental projects include: [e.g., activity place rental, training room rental], but are not limited to the above types.
租赁类项目包括: 【例如: 活动场所出租、培训室出租】, 但不仅限于以上项目类型。
- The equipment in the workplace that the Client provides to Vendor or authorizes Vendor to use shall be maintained by the Vendor. The Vendor shall confirm the safety status of the equipment in the workplace before use, the Vendor shall be responsible for maintenance during use.
客户提供的或授权提供商使用的场所设备, 由提供商进行维护。提供商应在使用前确认场所设备的安全状态, 在使用过程中由提供商负责维护保养。
- The Vendor shall not arbitrarily change the purpose of the workplace and damage the structure of the building.
提供商不得随意变更场所用途和破坏建筑物的结构。

(No formal text below)

(本页以下无正文)